DOCUMENT-BASED QUESTION

3.2 Constitutional Debates

Legislators and ordinary citizens had a lot to say both for and against ratifying the proposed Constitution. As people on both sides of the debate published their arguments, it became clear that some kind of compromise was necessary for this plan of government to survive.

Federalists and antifederalists circulated their opinions to appeal to and persuade their audiences. As you have read, Alexander Hamilton, John Jay, and James Madison published *The Federalist* in support of ratification of the Constitution as written. Writer George Mason argued against the Constitution without certain guarantees. Writing under the pen name of "A Columbian Patriot," Mercy Otis Warren presented a strong antifederalist argument, which antifederalist newspapers used to challenge federalist ideas.



CRITICAL VIEWING John Singleton Copley painted this 1763 portrait of Mercy Otis Warren. Warren grew up in a wealthy and politically active family. Though she did not receive a formal education, she became a poet, a playwright, and a historian. Her social position allowed her a unique view of the events of the American Revolution. What details in her portrait convey her social status?

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DOCUMENT ONE

Primary Source: Essay
from "Federalist No. 1," by Alexander Hamilton, 1788

Originally appearing as an anonymous series of 85 newspaper essays in favor of the Constitution, the authors' work was bound into the book *The Federalist* in 1788. These essays are considered among the most important examples of political philosophy in American history. This excerpt, from the first essay, was written by Hamilton.

CONSTRUCTED RESPONSE What was the author's opinion about a strong government versus the opinions of those who advocated for more rights for the people?

> History will teach us that [dangerous ambition] has been found a much more certain road to the introduction of despotism [government with an absolute ruler] than the [firmness and efficiency of government], and that of those men who have overturned the liberties of republics, the greatest number have begun their career by paying . . . court to the people; commencing demagogues [absolute rulers], and ending tyrants.

DOCUMENT TWO

Primary Source: Essay
from "Objections to the Constitution of Government Formed by the Convention," by George Mason, 1787

During the Constitutional Convention in 1787, George Mason wrote an essay about why he refused to sign the Constitution. In his essay, which was published in the *Virginia Journal,* Mason predicted what would become of the union if individual rights weren't made clear. His ideas reflected principles in the Declaration of Independence.

CONSTRUCTED RESPONSE How does Mason's essay about government differ from ideas expressed in *The Federalist?*

> This government will set out a moderate aristocracy [a class system based on birth or wealth]: it is at present impossible to foresee whether it will, in its operation, produce a monarchy, or a corrupt, tyrannical aristocracy; it will most probably vibrate some years between the two, and then terminate in the one or the other.

DOCUMENT THREE

Primary Source: Essay
from "Observations on the New Constitution," by Mercy Otis Warren, 1788

As a woman in the new United States, Mercy Otis Warren could not vote or take part in any conventions or lawmaking. That did not stop her from voicing a strong antifederalist viewpoint in the hopes of swaying those who had the power to ratify or reject the Constitution.

CONSTRUCTED RESPONSE What concerns about the Constitution did Warren express?

> [The] Constitution, which, by the undefined meaning of some parts, and the ambiguities of expression in others, is dangerously adapted to the purposes of . . . tyranny. There is no security in the proffered [presented] system, either for the rights of conscience, or liberty of the press. There are no well-defined limits of the Judiciary Powers. The Executive and Legislative are so dangerously blended as to give just cause of alarm.

SYNTHESIZE & WRITE

1. **REVIEW** Review what you have learned about the arguments for and against the ratification of the Constitution.
2. **RECALL** On your own paper, write details about the arguments in favor of and opposed to the ratification of the Constitution, as revealed by the three excerpts.
3. **CONSTRUCT** Construct a topic sentence that answers this question: What were the main philosophies that supported the arguments for and against the ratification of the Constitution?
4. **WRITE** Using evidence from this chapter and the documents, write an informative paragraph that supports your topic sentence in Step 3.

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